

MUTUAL NON-DISCLOSURE AGREEMENT MEMORANDUM

TO: General Counsel
FROM: M&A Practice Group
DATE: December 30, 2024

RE: Interim Operating Covenants Under Merger

This Mutual Non-Disclosure Agreement

Dear General Counsel,

~~This~~ (memorandum outlines your company's key obligations during the "Agreement") is entered into as of January 15, 2025 (the "Effective Date"), by and period **between**: signing and closing of the merger agreement. These covenants are designed to preserve the business value for the buyer and maintain operational stability during the interim period.

Amazing Corp, a corporation organized under the laws of the State of Delaware, with its principal office at 200 Tech Boulevard, Suite 400, San Jose, CA 95110 (the "Disclosing Party"), contact: legal@amazing.com
and

TechCraft LLC, a limited liability company organized under the laws of the State of New York, with its principal office at 50 Innovation Way, New York, NY 10001 (the "Receiving Party").

Each referred to individually as a "Party" and collectively as the "Parties".

1. Definitions

"Confidential Information" means any and all non-public, proprietary, or confidential information disclosed by either Party to the other Party, whether orally, in writing, or by inspection of tangible objects, including but not limited to: trade secrets, business plans, financial data, customer lists, technical specifications, software code, product roadmaps, and marketing strategies.

2.

OPERATIONAL COVENANTS

Affirmative Obligations of Receiving Party(What You Must Do)

The Receiving Party agrees to the following obligations with respect to Confidential Information:

~~1.~~ **Business Operations**

- ~~— Maintain the confidentiality of all Confidential Information using the same degree of care as it uses company in good standing under applicable laws~~
- ~~— Conduct business in the ordinary course, with exceptions for its own confidential information, but no less than an ongoing real estate sale measures~~
- ~~• — Use reasonable care, best efforts to preserve material assets, contracts, and business relationships~~
- ~~• Not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party.~~

~~Restrict access to Confidential Information to — Maintain current insurance levels~~
~~— Keep current officers and key employees available~~

~~2. Stakeholder Relations~~

- ~~— Preserve relationships with customers, suppliers, partners, platform providers, manufacturers, distributors, lessors, licensors, licensees, creditors, and contractors~~
- ~~— Maintain goodwill with all key business relationships~~

~~Restrictive Covenants (What You Cannot Do)~~

~~1. Corporate Structure and Governance~~

- ~~— No amendments to charter, bylaws, or organizational documents (except minor administrative changes for wholly-owned subsidiaries)~~
- ~~— No liquidation, dissolution, merger, consolidation, restructuring, or reorganization~~
- ~~— No entry into new business segments unrelated to existing operations~~

~~2. Securities and Capital Structure~~

- ~~— No issuance, sale, or delivery of company securities (subject to limited exceptions)~~
- ~~— No stock splits, combinations, or reclassifications~~
- ~~— No declaration of dividends or distributions (subject to specific exceptions)~~
- ~~— No pledging or encumbering of capital stock~~



~~3. Financial Matters~~

- ~~— No incurrence of new indebtedness (subject to exceptions)~~
- ~~— No assumption of third-party obligations (except for wholly-owned subsidiaries)~~
- ~~— No creation of liens (other than permitted liens)~~
- ~~— No material changes to accounting practices (unless required by law or GAAP)~~

~~4. Employee Matters~~

- ~~— No termination or hiring of any employees or above without buyer consultation~~
- ~~— No adoption or modification of employee benefit plans (subject to exceptions)~~

- No compensation increases or special bonuses
- No new severance arrangements
- No plant closings or mass layoffs
- No voluntary recognition of labor unions

5. Tax Matters

- No amendment of material tax returns
- No material tax elections or changes in accounting methods
- No settlements of material tax claims
- No extension of limitation periods for material tax claims

~~6. who have a need to know~~ Commercial Operations

- No capital expenditures outside approved budget
- No material modifications to significant contracts
- No material customer refunds or credits outside ordinary course
- No disposal of material business lines
- No material changes to privacy policies or IT security

Key Monetary Thresholds

- Acquisitions limited to \$25,000,000 per transaction or \$150,000,000 aggregate
- Other specific thresholds as detailed in the disclosure schedules

Process for Exceptions

1. Any proposed actions that may violate these covenants should be promptly brought to our attention
2. We can help assess whether the action falls within any exceptions or requires buyer consent
3. When in doubt, consult with us before proceeding

CRITICAL DEAL-RELATED OBLIGATIONS

1. Public Communications

- Coordinate all deal-related communications with the Acquiror
- -- Any press releases, employee communications, or public statements about the transaction must be reviewed and are bound by confidentiality obligations approved by the Acquiror in advance

Not use Confidential Information for any purpose -- Exercise particular caution in social media communications that could relate to the transaction

2. Alternative Transaction Proposals

- Exercise extreme caution regarding any incoming inquiries about alternative transactions
- Promptly notify the Acquiror of any alternative transaction proposals received

~~— Do not encourage or solicit alternative proposals, other than evaluating the during the go-shop period (March 1-31, 2025)~~

- ~~• — Maintain careful records of any interactions with third parties regarding potential business relationship between the Parties. transactions~~

~~Promptly notify the Disclosing Party of any unauthorized use or disclosure of Confidential Information. — Consult with counsel immediately upon receiving any alternative proposal~~

~~Please note that this summary is not exhaustive, and specific exceptions exist for many of these restrictions. We recommend consulting with us before taking any significant actions that could implicate these covenants.~~

Best regards,

• [lawyer]

3. Exclusions

Confidential Information shall not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was known to the Receiving Party prior to disclosure; (c) is independently developed by the Receiving Party without use of the Confidential Information; or (d) is rightfully obtained from a third party without restriction on disclosure.

4. Term and Termination

This Agreement shall remain in effect for a period of two (2) years from the Effective Date, January 15, 2025. Either Party may terminate this Agreement upon thirty (30) days' written notice to the other Party. The obligations of confidentiality shall survive termination for a period of five (5) years.

5. Indemnification

Each Party shall mutually indemnify, defend, and hold harmless the other Party from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to any breach of this Agreement. The total liability under this section shall not exceed \$500,000.

6. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

7. Miscellaneous

This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous

agreements, whether written or oral. No amendment to this Agreement shall be effective unless made in writing and signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Disclosing Party: [Party A Signature]

Receiving Party: [Party B Signature]

Date: [Date]